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Case Number: 25STCV01100 Hearing Date: September 15, 2026 Dept: 224

Evolution Pictures Limited v. Stone Group 1, LLC

TENTATIVE RULING

Plaintiff's motion to compel the depositions of Michael Slifkin and Scott Martin and to compel production of documents is GRANTED.

Archstone Distribution LLC is ordered to produce Michael Slifkin and Scott Martin for deposition on dates mutually agreeable to counsel, but in no event later than 30 days from the date of notice of this order.

Archstone Distribution LLC is further ordered to produce, without objection, all documents described in the Notices of Deposition and Demands for Production of Documents served May 15, 2026, no later than 30 days from the date of notice of this order.

The request for sanctions is DENIED.

ANALYSIS

Introduction

On January 16, 2025, Plaintiff Evolution Pictures Limited filed its Complaint in this action against Defendants Stone Group 1, LLC and Archstone Distribution LLC for breach of written contract and declaratory relief.

On May 15, 2026, following several continuances, Plaintiff served amended Notices of Deposition and Demands for Production of Documents, noticing Mr. Martin's deposition for June 11, 2026 and Mr. Slifkin's deposition for June 12, 2026. Archstone did not serve objections to these notices.

On June 4, 2026, Mr. Martin advised Plaintiff's representative by email that neither he nor Mr. Slifkin would be available on the noticed dates and that they would provide their availability. Neither deponent appeared on June 11 or 12, 2026, no documents were produced, and no alternative dates were provided.

On July 28, 2026, Plaintiff filed the instant Motion to Compel Archstone Distribution LLC to Produce Michael Slifkin and Scott Martin for Deposition, for Production of Documents, and for Monetary, Issue, and Evidence Sanctions.

On September 1, 2026, Archstone filed its Opposition to the Motion.

Meet and Confer

A motion to compel deposition must be accompanied by a good faith meet and confer declaration under Section 2016.040. (C.C.P., § 2025.480, subd. (b).) The declaration must state facts showing a reasonable and good faith attempt at an informal resolution of each issue presented in the motion. (C.C.P., § 2016.040.)

The Court notes that no declaration has been provided setting forth Counsel's good faith efforts to meet and confer in accordance with C.C.P., § 2016.040. Nonetheless, the Court exercises its discretion to proceed on the merits of the dispute below.

Legal Standard

Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code of Civ. Proc., § 2025.010.) A properly served deposition notice is effective to require a party or party-affiliated deponent to attend and to testify, as well as to produce documents for inspection and copying. (Code of Civ. Proc., § 2025.280, subd. (a).)

"If, after service of a deposition notice, a party . . . fails to appear for examination, or to proceed with it, or to produce for inspection any document . . . described in the deposition notice, the party giving notice may move for an order compelling deponent's attendance and testimony, and the production . . . of any document . . . described in the deposition notice." (Code of Civ. Proc., § 2025.450, subd. (a).) The motion must set forth both facts showing good cause justifying the demand for any documents and a meet and confer declaration. (Code of Civ. Proc., § 2025.450, subds. (b)(1), (b)(2).)

Discussion

Here, Plaintiff served Notices of Deposition and Demands for Production of Documents on March 13, 2026, noticing the depositions of Mr. Martin and Mr. Slifkin for March 23 and 25, 2026. (Stillman Decl., ¶ 6, Exh. C.)

Plaintiff then served amended Notices of Deposition and Demands for Production of Documents on May 15, 2026, noticing Mr. Martin's deposition for June 11, 2026 and Mr. Slifkin's deposition for June 12, 2026. (Stillman Decl., ¶ 5, Exh. B.) Neither deponent appeared on the noticed dates, no documents were produced, and no alternative dates were provided before this motion was filed on July 28, 2026.

Plaintiff is entitled to take these depositions. Archstone does not dispute that the depositions did not go forward. It argues instead that the motion is unnecessary because it has repeatedly offered dates. While these offers bear on the sanctions request, they do not excuse the nonappearance or render an order unnecessary. The depositions have been outstanding since March 2026, no date has been agreed upon, and the parties' inability to coordinate is itself reason to set an outside date by order.

As to the documents, Archstone's opposition does not address the demands for production contained in the May 15, 2026 notices, does not identify any objection to them, and makes no showing that any responsive documents have been

produced. Because no timely objection was served under section 2025.410, objections to the demands are waived and production is ordered without objection.

Sanctions

Plaintiff's request for issue and evidence sanctions is denied. Nonmonetary sanctions are ordinarily imposed incrementally, and disobedience of a prior discovery order is the usual predicate. Although issue and evidence sanctions may issue absent a prior order in exceptional circumstances where the discovery obligation is unmistakably clear and the failure to comply is egregious (see *New Albertsons, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1423; *R.S. Creative, Inc. v. Creative Cotton, Ltd.* (1999) 75 Cal.App.4th 486, 496), this record does not present such circumstances. No prior order compelling this discovery has been violated, and Archstone has offered dates for the depositions. The request is denied without prejudice to renewal in the event the orders below are not obeyed.

Plaintiff's request for monetary sanctions in the amount of \$5,000 is likewise denied. Although sanctions are ordinarily mandatory under section 2025.450, subdivision (g)(1), the court finds that other circumstances make their imposition unjust here. Archstone's counsel made four unanswered attempts between July 23 and August 28, 2026 to confer and to schedule the depositions, including an offer of specific dates that would have preceded this hearing. (Pfeiffer Decl., ¶¶ 4-6, 8-9, Exhs. A-C, E.) Plaintiff declined to engage with those offers. Under these circumstances, an award of monetary sanctions is not warranted.

Conclusion

Plaintiff's motion to compel the depositions of Michael Slifkin and Scott Martin and to compel production of documents is GRANTED.

Archstone Distribution LLC is ordered to produce Michael Slifkin and Scott Martin for deposition on dates mutually agreeable to counsel, but in no event later than 30 days from the date of notice of this order.

Archstone Distribution LLC is further ordered to produce, without objection, all documents described in the Notices of Deposition and Demands for Production of Documents served May 15, 2026, no later than 30 days from the date of notice of this order.

The request for sanctions is DENIED.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at SMCDept224@lacourt.org indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.